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Case Number: 25VECV05612 Hearing Date: August 25, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BELLA XINWEI DONG, an
individual,

Plaintiff,

vs.

VOLKSWAGEN GROUP OF AMERICA, INC., a New
Jersey Corporation; SHERMAN OAKS-A, INC. d/b/a AUDI VAN NUYS, a California
Corporation; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO.: 25VECV05612

ORDER

DENYING DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

ORDER

GRANTING DEFENDANTS' MOTION FOR SUMMARY ADJUDICATION AS TO VOLKSWAGEN GROUP OF AMERICA, INC. BUT DENYING IT AS TO SHERMAN OAKS-A, INC.

I.

BACKGROUND

Plaintiff Bella Xinwei

Dong ("Plaintiff") brings this Song Beverly action against Volkswagen Group of America, Inc. ("Volkswagen"), the manufacturer, and Sherman Oaks-A, Inc. dba

Audi Van Nuys (“Dealer”), the selling dealership (jointly, “Defendants”), arising out of her purchase of a 2025 Audi SQ8.

Defendants move for summary judgment, or alternatively, summary adjudication.

II.

PROCEDURAL

HISTORY

On October 1, 2025, Plaintiff filed a Complaint alleging (1) Breach of Implied Warranty of Merchantability under the Song Beverly Warranty Act; (2) Breach of Express Warranty under the Song-Beverly Warranty Act; (3) Breach of Express Warranty under the Magnuson-Moss Warranty Act; and (4) Breach of Implied Warranty of Merchantability under the Magnuson-Moss Warranty Act.

On November 21, 2025, Defendants separately filed an Answer.

On May 6, 2026, Defendants filed the instant Motion.

On August 12, 2026, Plaintiff filed an Opposition.

As of August 24, 2026, no reply has been filed.

III.

LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine

whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (See Code Civ. Proc. § 437c(c);[1] Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) As to each claim as framed by the complaint, a defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate or establish an essential element. (See Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) A motion for summary judgment must be denied where the moving party’s evidence does not prove all material facts, even in the absence of any opposition. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 475; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384.)

Once the moving party has met its burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material fact exists to a cause of action or a defense thereto. (See Code Civ. Proc. § 437c(o)(2).)

IV.

ANALYSIS

A.

Moving Defendants’ Undisputed Material Facts

On June 14, 2025, Plaintiff leased a new 2025 Audi SQ8 (the “Vehicle”) from Dealer. (See Def.’s Sep. Stmt. Undisputed Material Facts (“UMF”), No. 1, 35.) On July 5, 2025, Plaintiff purchased the Vehicle used from Dealer. (See id., Nos. 2,

13, 19, 26, 36.) The Vehicle was not “Certified PreOwned.” (See id., Nos. 3, 14, 20.) Volkswagen did not sell the Vehicle to Plaintiff. (See id., Nos. 4, 15, 21, 27, 37.) Dealer sold the Vehicle to Plaintiff. (See id., Nos. 5, 17, 23, 29, 39.)

Neither Volkswagen nor Dealer issued or extended any new warranties on the Vehicle as part of the sale of that vehicle to Plaintiff. (See id., Nos. 6-7, 16, 18, 22, 24-25, 28, 30, 38, 40.) Volkswagen is not – and never has been – a distributor or retailer of used motor vehicles. (See id., Nos. 8, 31, 41.) The warranties Volkswagen provided in the original new vehicle sale were conspicuously labeled as “limited.” (See id., Nos. 9, 32, 42.)

Volkswagen maintains a compliant third-party informal dispute resolution process administered by the Better Business Bureau (“BBB Auto Line”). (See id., Nos. 10, 43.) Volkswagen advises its consumers of the existence of the BBB Auto Line program on the face of Volkswagen’s written warranty. (See id., Nos. 11, 33, 44.) Plaintiff did not participate in BBB Auto Line prior to filing this lawsuit. (See id., Nos. 12, 34, 45.)

B.

Moving Defendants’ Motions for Summary

Judgment, Alternatively Summary Adjudication, is Granted as to Volkswagen and Denied as to Dealer.

The Complaint

alleges Plaintiff leased the Subject Vehicle on June 14, 2025, and purchased it on July 5, 2025. (See Compl., ¶¶ 7-9.) Plaintiff alleges two Song-Beverly claims and two Magnuson-Moss claims against Defendants.

1.

Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act & Breach of Express Warranty under the Song-Beverly Warranty Act

The elements

for a breach of express warranty claim are: (1) plaintiff bought or leased a new motor vehicle from defendant; (2) defendant gave plaintiff a written warranty; (3) the vehicle had a nonconformity that was covered by the warranty

that substantially impaired its use, value, or safety; (4) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair; (5) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts; and (6) defendant did not replace or buy back the vehicle. (See Civ. Code § 1790 et seq.; see also *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 152; *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 206.)

The elements

of a breach of the implied warranty of merchantability are: (1) plaintiff bought a consumer good from or manufactured by defendant; (2) at the time of purchase, defendant was in the business of selling or manufacturing the consumer good; (3) the consumer good was not of the same quality as those generally acceptable in the trade, not fit for the ordinary purposes for which the goods or used, not adequately contained, packed and labeled, or does not conform to the promises or affirmations of fact made on the container or label; (4) plaintiff was harmed; and (5) defendant's breach of the implied warranty was a substantial factor in causing plaintiff's harm. (See Civ. Code § 1791.1; see *Isip v. Mercedes-Benz USA, LLC* (2007) 155 Cal.App.4th 19, 26; see *Gutierrez v. Carmax Auto Superstores Cal.* (2018) 19 Cal.App.5th 1234, 1247.)

“As is the case with liability for breach of express warranties, ‘in the sale of used consumer goods, liability for breach of implied warranty lies with distributors and retailers, not the manufacturer,’ unless the manufacturer issues a new warranty along with the sale of the used good.” (*Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 218 [emphasis in original] [quoting *Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 398].) “[T]he Song-Beverly Act generally binds only distributors and retail sellers in the sale of used goods” (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 337; see Civ. Code § 1795.5(a).)

Defendants

argue Plaintiff's Song-Beverly claims fail because Plaintiff purchased a used vehicle and thus, she may not assert statutory remedies available to buyers of new cars. (See Mot. at 6:11-21, citing *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196-205, 19:16-23, 20:12-20.) Defendants submit the Retail Installment Sales Contract establishing Plaintiff purchased the Vehicle used,

non-certified preowned, from Dealer on July 5, 2025. (See UMF. Nos. 2-3, 5.) Defendants submit evidence showing the Vehicle, at the time of purchase, came with the remaining balance of the New Vehicle Limited Warranty, which was initially issued on June 2025. (See id.) Defendants also submit the undisputed facts that neither Volkswagen nor Dealer issued or extended any new warranties on the Vehicle as part of the sale of Vehicle. (See UMF Nos. 6-7, 16, 18.)

Defendants meet

their burden in showing Volkswagen is entitled to summary adjudication on the first and second causes of action, as the evidence demonstrates Plaintiff purchased the vehicle used. However, Defendants do not meet their burden in showing Dealer is entitled to summary adjudication on the first and second claims based on the same evidence. Under the Song Beverly Act, liability for breach of express and implied warranties for a used vehicle would still lie with the selling dealership. (See Rodriguez, 77 Cal.App.5th at 218; Kiluk, 43 Cal.App.5th at 336.)

Thus, the

burden only shifts to Plaintiff to raise a triable issue as to Volkswagen's liability under the Song-Beverly Act for the used Vehicle.

Plaintiff

fails to raise a triable issue and fails to submit a separate statement. (See Code Civ. Proc. § 437c(b)(3).) Plaintiff argues because she purchased the Vehicle after she initially leased it, she is still entitled to her rights under the Song-Beverly Act. (See Opp. at 4:9-17; Declaration of Jeeho H. Lim filed August 12, 2026, ¶ 6.) The Court finds Plaintiff fails to meet her burden.

Thus, the

Court GRANTS Defendants' Motion for Summary Adjudication on the First and Second Causes of Action for Breach of Implied Warranty of Merchantability under the Song Beverly Warranty Act and Breach of Express Warranty under the Song-Beverly Warranty Act as to Volkswagen.

The Court

DENIES the Motion for Summary Adjudication on the First and Second Causes of Action as to Dealer.

Breaches of Written & Implied Warranty under Magnuson-Moss Warranty Act

Under the

Magnuson-Moss Act, "... a consumer who is damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under this chapter, or under a written warranty, implied warranty, or service

contract, may bring suit for damages and other legal and equitable relief..." (15 U.S.C. § 2310(d)(1).)[2] "No supplier may disclaim or modify (except as provided in subsection (b)) any implied warranty to a consumer with respect to such consumer product if (1) such supplier makes any written warranty to the consumer with respect to such consumer Product, or (2) at the time of sale, or within 90 days thereafter, such supplier enters into a service contract with the consumer which applies to such consumer product." (15 U.S.C. § 2308(a).)

The

Magnuson-Moss Warranty Act "calls for the application of state written and implied warranty law, not the creation of additional federal law,' except in specific instances in which it expressly prescribes a regulating rule." (Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 833, internal citation omitted; see also Clemens v. DaimlerChrysler Corp. (9th Cir. 2008) 534 F.3d 1017, 1022 n.3.) Thus, the failure to state a warranty claim under state law necessarily defeats a Magnuson-Moss Warranty Act claim. (See Daugherty, 144 Cal.App.4th at 833 [rejecting plaintiff's argument that she properly pled a Magnuson-Moss Warranty Act cause of action in the absence of a state law warranty claim].)

However, courts

have held even if relief is not available under the Song-Beverly Act, a cause of action under the Magnuson-Moss Act may be based on other state laws, such as the warranty provisions under California Commercial Code, sections 2313 and 2714. (See Orichian v. BMW of N. Am., LLC (2014) 226 Cal.App.4th 1322, 1332; see also Dagher v. Ford Motor Co. (2015) 238 Cal.App.4th 905, 928 [purchaser's express warranty claims under the California Commercial Code were viable despite the lack of a viable cause of action under the Song-Beverly Act].) In Dagher, during the pendency of the defendant's motion for summary judgment, plaintiff moved to amend his complaint to assert claims under Magnuson-Moss based on Ford's breach of the express warranty and implied warranty provisions of the UCC. (See Dagher, 238 Cal.App.4th at 913.) Accordingly, the Dagher Court found that the plaintiff's

Magnuson-Moss claim survived summary judgment because the plaintiff had valid claims under the UCC by seeking repairs for apparent defects during the unexpired transferred warranty period. (See *id.*, at 928.)

Defendants rely on the evidence above to argue Plaintiff's Magnuson-Moss claims fail because her Song-Beverly Act claims fail against them. (See Mot. at 16:25-17:23, citing Daugherty, 144 Cal.App.4th at 833.) Defendants further argue Plaintiff's Magnuson-Moss Warranty Act claims fail as to Volkswagen because she failed to use Volkswagen's informal dispute resolution procedures mandated by the manufacturer's warranty. (See Mot. at 17:24-26, citing 15 U.S.C. § 2310(a)(3).) Defendants submit the undisputed facts Volkswagen maintains a compliant third-party informal dispute resolution process administered by the Better Business Bureau ("BBB Auto Line"). (See UMF Nos. 10-11.) Defendants submit the undisputed material fact Plaintiff didn't participate in the BBB Auto Line prior to commencing her action. (See *id.*, No. 12.)

The Court finds Defendants meet their burden in showing Volkswagen is entitled to summary adjudication on the third and fourth Magnuson-Moss claims because they were entitled to summary adjudication on the underlying Song-Beverly Act claims above.[3]

However, Defendants did not meet their burden in showing Dealer is entitled to summary adjudication on the first and second claims based. Thus, Defendant's argument the Magnuson-Moss claims against Dealer necessarily fail because Plaintiff's Song-Beverly claims as to Dealer fail is unavailing.

The burden only shifts to Plaintiff to raise a triable issue as to Volkswagen's liability for the used Vehicle. For the same reasons above, the Court finds Plaintiff fails to raise a triable issue.

Thus, the Court GRANTS Defendants' Motion for Summary Adjudication on the Third and Fourth Causes of Action for Breach of Express Warranty under the Magnuson-Moss Warranty Act and Breach of Implied Warranty of Merchantability under the Magnuson-Moss Warranty Act as to Volkswagen.

The Court DENIES the Motion for Summary Adjudication on the Third and Fourth Causes of

Action as to Dealer.

C.

Plaintiff's Request for Leave to Amend
is Denied.

"[L]eave to amend is liberally granted, even when a summary judgment motion is pending." (Willemsen v. Mitrosilis (2014) 230 Cal.App.4th 622, 633.) However, leave to amend may be denied due to unwarranted delay or lack of diligence in seeking leave to amend. (See Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1280 [finding no abuse of discretion where trial court denied plaintiff's request for leave to amend at oral argument during hearing on motion for summary judgment based on finding that any amendment was inconsistent with plaintiffs' theory of the case].)

"Thus, when a plaintiff seeks leave to amend his or her complaint only after the defendant has mounted a summary judgment motion directed at the allegations of the unamended complaint, even though the plaintiff has been aware of the facts upon which the amendment is based, "[i]t would be patently unfair to allow plaintiffs to defeat [the] summary judgment motion by allowing them to present a 'moving target' unbounded by the pleadings." (Id., quoting Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 176; see Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 225 [trial court did not abuse its discretion in denying leave to amend where no motion to amend or proposed amendment was filed despite ability to do so before motion for summary judgment filed]; but see Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1257, fn. 6 ["plaintiff must seek leave to amend the complaint at or prior to the hearing on the motion for summary judgment"; the court may and should permit him to amend].)

In the body of Plaintiff's opposition, Plaintiff requests leave to amend the Complaint so she can file a Motion for Leave to Amend to remove the Breach of Song-Beverly and Breach of Implied Warranty under Magnuson-Moss claims and add (1) Breach of Express/Written Warranty under Commercial Code §§ 2102, 2103, and 2105, (2) Breach of Contract, and (3) Breach of Written Warranty under the Magnuson-Moss Warranty Act. (See Opp. at 6:21-24.)

The Court

denies the request for leave to amend. (See Dagher, 238 Cal.App.4th at 914 [trial court denied pending motion to amend, filed after timely opposition to motion for summary judgment, without prejudice to plaintiff filing a new action].) Plaintiff was served with the instant Motion on May 6, 2026, but has unreasonably delayed in seeking leave to amend the Complaint. Plaintiff could have filed a noticed motion for leave before Defendants filed the instant Motion during the two months prior to the hearing on this Motion. Thus, the Court denies Plaintiff's request for leave to amend. This decision is without prejudice to Plaintiff filing a separately noticed motion for leave to amend.

V.

CONCLUSION

Based on the foregoing, the Court DENIES Defendants' Motion for Summary Judgment as to Volkswagen. However, the Court GRANTS Defendants' Motion for Summary Adjudication as to Volkswagen but DENIES it as to Dealer.

IT

IS SO ORDERED.

DATED: August 25, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] "The term 'supplier' means any person engaged in the business of making a consumer product directly or indirectly available to consumers." (15 U.S.C. § 2310(d)(1).) "The term 'warrantor' means any supplier or other person who gives or offers to give a written warranty or who is or may be obligated under an implied warranty." (Id.)

[3] The Court does not reach the issue of Plaintiff's compliance with the BBB Auto Line.